

24TRCV00284 24TRCV00284

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Case Number: 24TRCV00284 Hearing Date: August 18, 2026 Dept: M

LOS ANGELES SUPERIOR COURT – SOUTHWEST DISTRICT

Honorable Amy N. Carter

Department M

Tuesday – August 18, 2026

Calendar No.

PROCEEDINGS

Diane

Valine, et al. v. Derek A. Treherne, et al.

24TRCV00284

1.

Derek A.

Treherne, et al.'s Motion for Protective Order, for Order Staying Deposition,
and for Order Appointing Discovery Referee

TENTATIVE RULING

Derek A. Treherne, et al.'s Motion for Protective Order,
for Order Staying Deposition, and for Order Appointing Discovery Referee is denied.

Background

Case No: 24TRCV00284 - Plaintiffs' Complaint was filed on January 26, 2024. The First Amended Complaint was filed on September 3, 2024. Plaintiffs allege the following facts. The Defendants own property adjacent to Plaintiffs' property and Defendants have allowed trees to grow in a manner that blocks Plaintiffs' view. In support of their contention that Defendants have acted willfully and intentionally, Plaintiffs allege that Defendants have also harassed and threatened Plaintiffs. Plaintiffs allege the following causes of action: 1. Continuing Private Nuisance – Spite Fence; 2. Violation of Rancho Palos Verdes Municipal Code Section 17.76.030.

Case No. 25TRCP00177 - Petitioner filed the Petition for Writ of Administrative Mandamus on April 4, 2025, the First Amended Petition on August 19, 2025, and the Second Amended Petition on November 17, 2025. Petitioner prays for judgment "1. That the Court issue a peremptory writ in the first instance commanding the City to (1) enforce the Hedge Ordinance through the procedures identified in Title 17, Chapter 18 of the Municipal Code and not Title 8, Chapter 24 of the Municipal Code; (2) take enforcement action against the trehernes (sic) as required following the City's determination the Podocarpus substantially impact the view from Ms. Valine's property; (3) issue a written interpretation of the "physical barrier" as that term is used in Municipal Code section 17.96.900, and follow the interpretation procedures identified in Title 17, Chapter Chapter 90 of the Municipal Code; (4) cease in its abuse of discretion and take enforcement action against the Trehernes after properly interpreting the term "physical barrier" to mean and include visual obstructions for purposes of Hedge Ordinance enforcement; and (5) require the Trehernes to commence the process of applying for a minor exception permit if they believe the Podocarpus are necessary to preserve privacy on their property. 2. That the Court, alternatively, first issue an alternative writ commanding the City to take enforcement action against the Treherne Property pursuant to the Hedge Ordinance or Ms. Valine's view as required by Municipal Code sections 17.76.030 or, in the alternative, to show cause why it should not do so, and thereafter issue a peremptory writ commanding the City to take enforcement action against the Treherne Property pursuant to the Hedge Ordinance to restore Ms. Valine's view as required by Municipal Code sections 17.76.030." (Second Amended Petition, p. 12, line 25 to p. 13, line 14).

Petitioner previously set forth the following causes of action: 1. Writ of Administrative Mandate; 2. Writ of Mandate. The Second Amended Petition now only includes a single cause of action for Writ of

Mandate.

The two actions were deemed related and consolidated.

Objections

Plaintiff's objections 1 to 6 are overruled.

Motion for Protective Order

The Court is authorized to

limit discovery through a protective order.

The order may be granted on the motion of any party or other person

affected by the discovery sought. CCP §§

2017.020(a), 2019.020(b), 2019.030(a). A

protective order may be obtained to limit the frequency or extent of use of any

discovery method on any of the following grounds: (1)

"The discovery sought is unreasonably cumulative or duplicative ...; (2)

"(The information) is obtainable from some other source that is more

convenient, less burdensome or less expensive;

(3) "The selected method of

discovery is unduly burdensome or expensive, taking into account the needs of

the case, the amount in controversy, and the importance of the issues at stake

in the litigation." CCP §

2019.030(a)(1)-(2).

Code Civ. Proc., § 2025.420

states:

"(a) Before, during, or

after a deposition, any party, any deponent, or any other affected natural

person or organization may promptly move for a protective order. The motion

shall be accompanied by a meet and confer declaration under Section 2016.040.

(b) The court, for good

cause shown, may make any order that justice requires to protect any party,

deponent, or other natural person or organization from unwarranted annoyance,

embarrassment, or oppression, or undue burden and expense. This protective order

may include, but is not limited to, one or more of the following directions:

(1) That the deposition not be taken at all.

(2) That the deposition be taken at a different time.

(3) That a video recording of the deposition testimony of a treating or consulting physician or of any expert witness, intended for possible use at trial under subdivision (d) of Section 2025.620, be postponed until the moving party has had an adequate opportunity to prepare, by discovery deposition of the deponent, or other means, for cross-examination.

(4) That the deposition be taken at a place other than that specified in the deposition notice, if it is within a distance permitted by Sections 2025.250 and 2025.260.

(5) That the deposition be taken only on certain specified terms and conditions.

(6) That the deponent's testimony be taken by written, instead of oral, examination.

(7) That the method of discovery be interrogatories to a party instead of an oral deposition.

(8) That the testimony be recorded in a manner different from that specified in the deposition notice.

(9) That certain matters not be inquired into.

(10) That the scope of the examination be limited to certain matters.

(11) That all or certain of the writings or tangible things designated in the deposition notice not be produced, inspected, copied, tested, or sampled, or that conditions be set for the production of electronically stored information designated in the deposition notice.

(12) That designated persons, other than the parties to the action and their officers and counsel, be excluded from attending the deposition.

(13) That a trade secret or other confidential research, development, or commercial information not be disclosed or be disclosed only to specified persons or only in a specified way.

(14) That the parties simultaneously file specified documents enclosed in sealed envelopes to be opened as directed by the court.

(15) That the deposition be sealed and thereafter opened only on order of the court.

(16) That examination of the deponent be terminated. If an order terminates the examination, the deposition shall not thereafter be resumed, except on order of the court.”

Meet and
Confer

Defendants set forth a meet and confer declaration in substantial compliance with CCP § 2025.420(a). (Declaration, Charles Peterson, ¶¶ 3-4).

Motion for
Protective Order

Defendants move for a protective order “preventing the depositions of the defendants under Code of Civil Procedure section 2025.420, subdivisions (a) and (b), for an order staying the deposition pending the court’s determination of the protective order motion and for the appointment of a discovery referee pursuant to Code of Civil Procedure § 639(a).” (Notice of Motion, p. 2, lines 6-10) The motion is made on the grounds that good cause exists to enter a protective order because Defendants are 81 and 86 years old and their health prevents them from conducting their depositions. Defendants also request appointment of a discovery referee due to “long-standing and continuing antagonism between the parties and to prevent further disruption or improper

conduct during discovery.” (Id. at lines 20-22).

Defendants submitted a declaration from a physician who contends that both Defendants are not medically fit to undergo depositions. (Declaration of Jeffrey S. Karns, M.D. re: Derek Treherne, ¶¶ 5-8; Declaration of Jeffrey S. Karns, M.D. re: June Treherne, ¶ 6.)

In Plaintiff’s Opposition, Plaintiff argues that Defendants failed to establish good cause to prevent the depositions and that the declarations supported in connection with the motion are not competent and completely conclusory regarding Defendants’ inability to undergo depositions. As to Derek Treherne, the physician set forth numerous conditions including congestive heart failure with low heart function, atrial fibrillation (including a pacemaker), chronic kidney disease – stage 4, and a recent fall. As to June Treherne, the physician mentions anxiety and hypertension. The physician states that as to both parties the stress of the depositions makes them unable to undergo depositions.

The burden on a motion for protective order is on the moving party to establish “good cause” for whatever relief is requested: “Generally, a deponent seeking a protective order will be required to show that the burden, expense, or intrusiveness involved in ... [the discovery procedure] clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence.” *Emerson Elec. Co. v. Sup.Ct. (Grayson)* (1997) 16 C4th 1101, 1110.

While the Court may issue a protective order to completely prevent a deposition, obtaining an order to completely prohibit a deposition is an extraordinary remedy. Here, Defendants have not established that other methods cannot be employed to limit the burden of the depositions while also fostering the public policy of allowing for the gathering of all potentially relevant evidence in an action. Here, for example, Plaintiff argues that she offered alternatives such as virtual depositions of a limited time frame. The Court believes that such limitations are far more preferable than completely eliminating Plaintiff’s right to conduct this crucial method of discovery.

The Motion for Protective Order is denied. However, the parties are to meet and confer to obtain a

resolution as to the method, scope, and time frame of the depositions of Defendants such that they cause a limited amount of stress as possible. The Court believes that a one hour time limit for each deposition with the ability to conduct the depositions remotely would be reasonable under these circumstances.

Motion for Appointment of Discovery Referee

CCP § 639(a)(5) states:

“When the parties do not consent, the court may, upon the written motion of any party, or of its own motion, appoint a referee in the following cases pursuant to the provisions of subdivision (b) of Section 640: When the court in any pending action determines that it is necessary for the court to appoint a referee to hear and determine any and all discovery motions and disputes relevant to discovery in the action and to report findings and make a recommendation thereon.” When the court makes an order appointing a discovery referee pursuant to CCP § 639(a)(5), the court must include, in the order, the exceptional circumstances that exist which require the reference. CCP § 639(d)(2).

“Unless both parties have agreed to a reference, the court should not make blanket orders directing all discovery motions to a discovery referee except in the unusual case where a majority of factors favoring reference are present. These include: (1) there are multiple issues to be resolved; (2) there are multiple motions to be heard simultaneously; (3) the present motion is only one in a continuum of many; (4) the number of documents to be reviewed (especially in issues based on assertions of privilege) make the inquiry inordinately time-consuming.” *Taggares v. Superior Court* (1998) 62 Cal.App.4th 94, 105.

Defendants move for appointment of a discovery referee pursuant to CCP § 639. Defendants have failed to demonstrate the existence of exceptional circumstances that are required to grant such a motion. Defendants vaguely identify longstanding antagonism between the parties and counsel. However, at this time, the Court is not aware of the existence of numerous discovery motions and disputes that have occurred in the past or are at issue in the future.

Therefore, the motion for

order to appoint a discovery referee is denied. However, the motion is denied without prejudice should additional factual circumstance arise for a discovery referee to be appointed either by noticed motion by the parties or upon the Court's own motion.

Derek A. Treherne, et al.'s
Motion for Protective Order, for Order Staying Deposition, and for Order Appointing Discovery Referee is denied.

Sanctions

Plaintiff's request for monetary sanctions is denied. The Court determines that Defendants acted with substantial justification and other circumstances exist to make the imposition of sanctions unjust. Code Civ. Proc., § 2025.420(h).

Plaintiff is ordered to give notice of this ruling.